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PREMIUM DIGITAL PLAYBOOKS FOR INDIA

The Indian Brand Protection Playbook 2026-27

Trademark, Copyright & Copycat Defence for Small Brands, Creators and Online Sellers

— The full trademark lifecycle, with every fee, form and deadline verified

— The 45-class map for Indian product, service and D2C businesses

— Examination reports, objections and oppositions, answered properly

— Copyright and design registration for logos, packaging and products

— Amazon Brand Registry and Flipkart Brand Assure, decoded

— The copycat defence ladder, and nine working templates

PART 0

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How to use this playbook

Read Part 1 to Part 4 before you print anything. If you have already launched, read Part 5 for the filing, Part 7 for the examination report, and Part 13 for the marketplace programmes. Part 14 and Part 17 are the working sections — the evidence pack and the nine templates you will actually use when something goes wrong. Every fee and deadline here is drawn from the official schedules in force in October 2026.

What this document is not

It is not legal advice and it does not create a lawyer-client relationship. For an opposition, a dispute, a high-value brand or anything already in litigation, instruct an advocate. Fees and forms change by notification — confirm the current figure on the official Intellectual Property Office site on the day you file.

PART 1

The arithmetic of an unprotected brand

Most small Indian brands do not lose their name to a court case. They lose it to a form they never filed, in a class they never checked, on a date three years before the problem appeared. The cost is not the legal fee. It is the packaging you printed, the listings you built, the reviews you earned, and the customers who now search a name that belongs to someone else.

Three failures account for almost all of it, and all three are avoidable before you spend a rupee on printing.

Failure one: the name was already taken in your class

India's register is searchable for free, and the search takes twenty minutes. Almost nobody runs it properly. The common mistake is searching only the exact spelling. The Registry examines for identity and for deceptive similarity, which includes phonetic equivalents, spelling variants and marks that merely look alike. A search for "Kwality" that ignores "Quality", "Kwalitee" and "Kwaliti" tells you nothing.

The second common mistake is searching only your own class. Two marks can coexist in unrelated classes — a shoe brand and a software brand can both be "Astra". But related classes are treated as one commercial field. Clothing and footwear are not separate universes to an examiner, and neither are restaurant services and packaged food.

Failure two: the mark was filed in the wrong class

The filing fee is charged per class, per mark. That creates a strong temptation to file one cheap class and hope. It also creates the opposite mistake: filing four classes "to be safe" when two would do, which costs twice as much and buys protection you will never use.

The class you need is the class of the goods or services you actually sell, plus the class of the retail or online service through which you sell them if you operate under your own name. A D2C skincare brand selling its own products online typically needs the goods class for the product and, if it wants to stop others trading under the name in retail, the retail-services class as well. Skipping the second is the single most common gap in Indian D2C filings.

Failure three: nothing was assigned in writing

The logo was drawn by a freelancer. The photographs were shot by a cousin. The packaging copy came from an agency. Under Indian copyright law the person who creates the work is the first owner, and a business that paid the invoice but never took an assignment may hold a licence at best and nothing at worst. When the freelancer later objects, or when you try to enforce the mark, the chain of title has a hole in it that no amount of filing fee can fix.

> **The one-page version**
> Run a real clearance search before you print. File in the class of what you sell plus the class of how you sell it. Get every creative contribution assigned in writing, on the day it is delivered. Do those three things and the rest of this playbook is maintenance rather than rescue.

What protection actually buys you

A registered trademark is not a badge. It is a statutory monopoly over a sign in relation to specific goods or services, backed by a civil action for infringement under Section 29 of the Trade Marks Act, 1999, and by criminal provisions for counterfeiting under Sections 103 and 104. The difference between owning that and not owning it shows up in four places.

- You can act. Section 27 of the Act bars any suit to prevent or recover damages for infringement of an **unregistered** mark. Without registration your only civil route is a passing-off action, which requires you to prove reputation, goodwill and misrepresentation — expensive, slow, and evidence-heavy.

- Platforms will listen. Both large Indian marketplaces gate their brand-protection programmes on a trademark. Amazon accepts a pending application; Flipkart's Brand Assure requires a registered mark. Without either, a competitor's false complaint can take your listing down and you have no counter.
- You can price. Exclusive rights support premium pricing, distributor terms and licensing revenue. A name anyone can copy is a name you cannot build equity in.
- You can raise money and sell the business. Due diligence asks for the IP schedule. An unregistered brand with no assignments is a discount on valuation.

None of that requires a large budget. It requires sequence: clearance, then filing, then assignment hygiene, then enforcement readiness. The rest of this playbook is that sequence, with the fees, forms, deadlines and documents for each step.

PART 2

The four rights you actually hold

Indian law gives a brand four separate instruments, and they protect different things. Confusing them is why people pay for the wrong filing. Trademark protects the sign. Copyright protects the expression. Design protects the appearance of an article. Passing off protects the goodwill, registered or not.

Instrument	What it protects	Governing law	Term
Trademark	Name, word, logo, tagline, shape, colour combination, sound — as a source identifier	Trade Marks Act, 1999	10 years, renewable indefinitely
Copyright	The actual artwork, text, photograph, film, music, software code	Copyright Act, 1957	Life of author + 60 years (literary, dramatic, musical, artistic)
Design	The shape, configuration, pattern or ornament applied to an article	Designs Act, 2000	10 years, extendable by 5
Passing off	Goodwill in a name used in trade, registered or not	Common law, preserved by s.27(2)	As long as goodwill subsists

Trademark is about the sign, not the product

A trademark does not protect your recipe, your formula, your process or your idea. It protects the badge you sell under. Someone may legally sell an identical product under a different name; what they may not do is sell it under a name or logo confusingly similar to yours, in the same or similar class.

Section 2(1)(zb) defines a trade mark as a mark capable of being represented graphically and capable of distinguishing one person's goods or services from another's. That definition is broad: it expressly includes the shape of goods, their packaging, and combinations of colour. Sound marks are registrable in India, and have been.

Copyright is automatic, registration is evidence

Copyright comes into existence the moment an original work is created and fixed. No formality is required. The Copyright Office itself states that acquisition is automatic, and that a certificate of registration and the entries in the Register serve as prima facie evidence in court.

That distinction matters commercially. You do not need to register to own. You register so that when a dispute starts, you are not spending the first six months proving you made something you obviously made.

Design is for the thing, not the mark on it

A design registration protects the visual appearance of an article — the bottle shape, the handle profile, the printed pattern on a box. It is a different filing with a different office workflow, a different fee and a much shorter life. If your product's commercial value sits in how it looks rather than what it is called, design is the instrument you are missing.

Passing off survives registration

Section 27(1) removes the right to sue for infringement of an unregistered mark, but Section 27(2) expressly preserves the action for passing off. So an unregistered but well-known brand is not defenceless — it simply fights on harder ground, proving reputation, misrepresentation and damage instead of producing a certificate. Registration converts a fact question into a document.

> **Which do you need first?**
> If you sell a physical product under a name: trademark first, then design if the shape matters, then copyright for the artwork. If you sell content, courses or services: trademark for the name, copyright for the material. If you sell software: trademark for the product name, copyright for the code. Almost never is copyright the first filing a product business should make.

PART 3

Choosing a name you can own

Distinctiveness is not a branding preference in India. It is the statutory test. Section 9(1) refuses marks that are devoid of distinctive character, that consist exclusively of indications designating kind, quality, quantity, intended purpose, values, geographical origin or time of production, or that have become customary in the trade.

That means the most attractive names are usually the least registrable, and the safest names sound slightly odd at first. Choosing with the statute in mind saves a year and a filing fee.

The five-tier spectrum, and where objections come from

Tier	Example shape	Registrability	Why
Fanciful	Invented word with no meaning — Kodak-type constructions	Strongest	Nothing to object to under s.9
Arbitrary	Real word unrelated to the goods — "Apple" for computers	Strong	No descriptive link to the product
Suggestive	Hints at a quality without describing it	Usually registrable	Requires a small leap of imagination
Descriptive	"Fresh Brew", "Pure Silk", "Best Bakery"	Refused under s.9(1)(b) unless distinctiveness acquired	Designates kind, quality or purpose
Generic	The common name of the product itself	Never registrable	Customary in the trade, s.9(1)(c)

The proviso to Section 9(1) is the escape hatch: a mark that has acquired a distinctive character as a result of use before the application date, or that is a well-known trade mark, shall not be refused. Acquired distinctiveness is proved with evidence — years of use, invoices, advertising spend, media coverage, consumer affidavits. It is available, but it is a fight, not a shortcut.

The Section 9(2) traps nobody warns you about

Beyond descriptiveness, Section 9(2) refuses marks that deceive the public or cause confusion, that contain matter likely to hurt the religious susceptibilities of any class of Indian citizens, that comprise scandalous or obscene matter, and marks whose use is prohibited under the Emblems and Names (Prevention of Improper Use) Act, 1950.

The last one catches more applications than people expect. Names and emblems connected with the Government of India, the United Nations, and specified national and international institutions cannot be used as trade marks. So can names suggestive of royal or governmental patronage. A brand built on an emblem-adjacent device will be refused regardless of how good the search result looks.

Section 9(3) separately bars marks consisting exclusively of a shape that results from the nature of the goods, a shape necessary to obtain a technical result, or a shape that gives substantial value to the goods. This is why packaging shapes are often a design question rather than a trademark question.

Section 14: living persons and recent deaths

If a mark falsely suggests a connection with a living person, or a person who died within twenty years before the application, the Registrar may require the written consent of that person or their legal representative and may refuse to proceed without it. Naming a product after a celebrity, a sportsperson or a recently deceased public figure is not a clever shortcut; it is a refusal with a delay attached.

The clearance search, done properly

The Trade Marks Registry's public search is free and does not require registration. It supports wordmark search and, separately, a search by Vienna code for the figurative elements of a logo. Run both. Here is the sequence that catches what a single exact-match search misses.

1. **Exact match.** The name as you intend to print it, in every class you are considering.
2. **Phonetic variants.** Same sound, different spelling. Try K-for-C, double letters, dropped vowels, Z-for-S. Indian examiners are alert to transliteration variants across scripts.
3. **Contains and starts-with.** A mark containing your word inside a longer mark can still block you if the dominant element is the same.
4. **Related classes.** Not just your class — the classes an examiner would treat as the same commercial field.
5. **Vienna code for the logo.** If your identity is a device, search the figurative elements, not the word.
6. **The Journal.** Search recent Trade Marks Journal publications for marks filed but not yet examined. These are the objections that arrive six months from now.

Record what you find. A dated search note with the classes searched, the terms used and the results is the beginning of your evidence file, and it is also the thing that shows a court you acted in good faith if you are later accused of adopting a mark knowingly.

> **Practical test before you commit**
>
> Say the name out loud to someone who has not heard it, then ask them to spell it. If they spell it differently, you have a phonetic-similarity problem in both directions — you will be blocked by marks you did not find, and you will fail to stop marks that sound like yours.

The names to walk away from

- Anything with a geographical indication flavour for that product category — the registry treats place names as descriptive of origin under Section 9(1)(b).
- Anything that is a minor spelling change to a category leader. You will be examined against it and, if you somehow get through, opposed.

- Anything built on "India", "Bharat", "National", "Standard" or an emblem-adjacent device, without legal advice on the Emblems and Names Act.
- Anything you cannot pronounce identically in the languages your customers speak. A name that survives English but collapses in Hindi or Tamil transliteration will generate the variants that later block you.
- Anything you found on a domain registrar's suggestion list without searching the register. Availability of a domain is evidence of nothing.

PART 4

Classes: what to file, what to skip

India follows the Nice Classification: 45 classes, 1 to 34 for goods and 35 to 45 for services. The fee is per class, per mark, so the class list is where a filing either becomes adequate or becomes expensive. This is the mapping that covers most Indian small brands.

Business	File in	Covers
Packaged food, spices, masala, snacks	29, 30	Preserved and prepared foods; flour, rice, spices, condiments
Restaurant, cloud kitchen, cafe, tiffin service	43	Services for providing food and drink
Bakery, sweets, namkeen	30 and 43	The goods themselves plus the outlet
Skincare, cosmetics, haircare	3	Bleaching, cleaning, polishing, cosmetics, hair lotions
Clothing and apparel label	25 and 35	Garments and footwear; retail and online store services
Jewellery and accessories	14 and 35	Precious metals, jewellery, watches; retail services
Software, SaaS, mobile app	9 and 42	Downloadable software; SaaS, design and technology services
Coaching, courses, edtech	41 and 9	Education and training; downloadable course material
Consulting, agency, marketing	35	Advertising, business management, consultancy
Interior design, architecture	42	Scientific and technological design services
Health clinic, diagnostics, wellness	44	Medical, hygienic and beauty care services
Pharmacy and health supplements	5 and 35	Pharmaceuticals; retail services
Furniture and home decor	20 and 35	Furniture, mirrors, picture frames; retail
FMCG personal care and retail	3, 35	Products plus the retail channel

Two structural points sit behind that table. First, the fee is per class and per mark — a company filing three marks across two classes each faces nine thousand rupees of filing fee per mark-pair at the higher slab. Second, filing in too few classes leaves the brand exposed in the channel where it actually trades, and the retail class is the one Indian brands most often forget.

Goods and services must be specified, not claimed wholesale

Claiming an entire class heading when you sell two products invites objection and, worse, creates a registration you cannot defend for the items you never trade in. Specify in plain terms drawn from the class headings and the Registry's accepted descriptions. A specification that says "cosmetics, namely face wash, serum and sunscreen" is stronger and cleaner than one that recites the whole of Class 3.

There is also a use obligation attached to the specification. Under Section 47(1)(b), a registered mark can be removed from the register on the application of any person aggrieved if, up to three months before the application, a continuous period of five years had elapsed during which the mark was registered and there was no bona fide use in relation to those goods or services. Registering across six classes you never trade in is not protection; it is a shelf of vulnerabilities.

One mark, one application, many classes

A single application in Form TM-A can cover more than one class, with the fee multiplied accordingly. This is administratively convenient, but it couples the fates of the classes. Rule 42(3) and 42(4) deal with the consequence: if an opposition is filed in only some classes of a multi-class application, the remaining classes do not proceed to registration until you file a request in Form TM-M for division of the application with the divisional fee.

For a first filing on a tight budget, the practical approach is to file the one or two classes where revenue actually comes from, get the application number, and add classes later as the business proves them. For a brand that is already trading across product and retail channels, filing both together avoids the division problem later.

> **Cost arithmetic you can do now**
> An individual, DPIIT-recognised startup or small enterprise filing one mark in two classes pays Rs 4,500 x 2 = Rs 9,000 in government fee at the e-filing rate. The same filing by a private limited company that is not an MSME and has no DPIIT recognition pays Rs 9,000 x 2 = Rs 18,000. The classification of the applicant, not the size of the brand, sets that number — and it is declared on the form.

Who qualifies for the lower slab

Three categories pay Rs 4,500 per class instead of Rs 9,000 at e-filing: individuals, startups recognised under the Startup India initiative, and small enterprises. The Trade Marks Rules define "small enterprise" by reference to the MSMED Act's medium-enterprise investment limit, so in practice micro, small and medium enterprises registered on the Udyam portal qualify. The Registry asks for proof, so file with the certificate attached.

Category	Proof to attach	Fee per class (e-filing)
Individual / sole proprietor in own name	PAN and identity details of the applicant	Rs 4,500
DPIIT-recognised startup	Startup India recognition certificate	Rs 4,500
Micro, small or medium enterprise	Udyam Registration Certificate	Rs 4,500
Private limited company, LLP, partnership firm, trust	Not eligible unless separately registered as MSME or startup	Rs 9,000

Udyam registration is free, paperless and based on self-declaration on the official Government of India portal. No fee is payable to anyone, there is no renewal, and only an Aadhaar number is required, with PAN and GSTIN linked from government databases. The revised classification limits, in force from 1 April 2025, are: micro — investment up to Rs 2.5 crore and turnover up to Rs 10 crore; small — up to Rs 25 crore and Rs 100 crore; medium — up to Rs 125 crore and Rs 500 crore.

That single free registration halves the government fee on every trademark, design and patent filing the business will ever make. It is the highest-return twenty minutes available to an Indian small brand, and it is routinely skipped.

One warning on the slab: if you claim the lower fee without the certificate, the Registry processes the application at the higher rate. There is no retrospective adjustment and the difference is not refunded.

PART 5

Filing Form TM-A, step by step

Filing is done on the Trade Marks e-filing portal. The application form is TM-A, and the fee is charged per class and per mark. Everything below is the order in which the portal actually asks for it, so you can gather documents before you start rather than abandoning a half-filled form.

What you need in front of you

- The mark itself: exact word, or a high-resolution image file of the logo, prepared at the size the portal accepts.
- Applicant details: legal name exactly as it should appear on the certificate, address, and constitution — individual, proprietorship, partnership, company, LLP, trust or society.
- The category you are claiming — individual, startup, small enterprise or other — with the supporting certificate if you want the reduced fee.
- Class numbers and the plain-language specification of goods or services for each class.
- The date of first use in India, if the mark has been used. If it has not, the application proceeds on a proposed-to-be-used basis.
- Signature of the applicant, and a Form TM-M authorisation if an agent or advocate is filing for you.

The nine steps

1. **Create the account.** Register on the Trade Marks e-filing portal as an applicant, not as an agent, unless you are filing on someone else's behalf. Keep the credentials somewhere the business owns, not in an employee's personal inbox.
2. **Select Form TM-A** and choose the type of mark: word, device (logo), colour, shape, sound, collective or certification.
3. **Enter the applicant and category.** The category drives the fee. Claim a concession only with the certificate in hand.
4. **Upload the mark.** For a word mark, type it. For a device mark, upload a clean image. The image you upload becomes the mark of record — a blurry or cropped file is a defect you will live with for ten years.
5. **Add each class with its specification.** Do not paste a whole class heading. Write the goods or services in plain terms.
6. **State use.** If used, the date of first use in India; if not, proposed to be used. An incorrect use date is a misstatement on the record.
7. **Upload documents.** Udyam or DPIIT certificate if claiming the concession, Form TM-M authorisation if applicable, and any priority document for a convention application.
8. **Pay and submit.** The portal issues an application number and a receipt. Save both. This number is what you will give Amazon for Brand Registry.
9. **Record the deadline.** The application number starts a clock you cannot see yet — the examination report will arrive months later, and it comes with one month to respond.

Use claimed or proposed to be used

Section 18 permits an application before use. Filing on a proposed-to-be-used basis lets you secure a filing date while packaging and listings are still being finalised, and the resulting application number is enough for Amazon's Brand Registry. It is not enough for Flipkart's Brand Assure, which requires a registered mark.

Where you have used the mark, state the date honestly. The date of first use is a priority fact that can decide a contest between two similar marks, and a date you cannot support with an invoice or a listing

screenshot is worse than no date at all.

Word mark or device mark — the choice inside the form

This single selection decides how much you own, and how easily a marketplace will verify you. It gets its own section later, but the short version belongs here: a word mark protects the word in any typeface and any colour; a device mark protects that specific artwork. If your packaging shows the name in plain text, a word mark matches your use and your marketplace application.

> **The five-minute pre-submission check**
> Legal name matches the PAN or certificate exactly. Category claimed matches the certificate uploaded. Every class has a specification in plain words. The logo file is clean and legible. The use date is either accurate or honestly left as proposed. Form TM-M is uploaded if an agent is filing. Payment completed and the receipt saved with the application number.

What it costs, at every stage

Stage	Form	Individual / startup / small enterprise	Company or other
New application, e-filing	TM-A	Rs 4,500 per class	Rs 9,000 per class
New application, physical filing	TM-A	Rs 5,000 per class	Rs 10,000 per class
Agent authorisation	TM-M	Rs 900	Rs 900
Search and certificate under Rule 22(1)	TM-C	Rs 9,000	Rs 9,000
Expedited examination (Rule 34)	TM-M	Rs 20,000 per class	Rs 40,000 per class
Reply to examination report	None	Nil	Nil
Attending a hearing	None	Nil	Nil
Notice of opposition or counter-statement	TM-O	Rs 2,700 per class	Rs 2,700 per class
Renewal, every ten years	TM-R	Rs 9,000 per class	Rs 9,000 per class
Renewal with surcharge, within 6 months of expiry	TM-R	Rs 4,500 + renewal fee	Rs 4,500 + renewal fee
Restoration and renewal after removal	TM-R	Rs 9,000 + renewal fee	Rs 9,000 + renewal fee
Inclusion in the well-known marks list	TM-M	Rs 1,00,000	Rs 1,00,000

All figures are the government fees in the First Schedule to the Trade Marks Rules, 2017 as published by the Intellectual Property Office, and they are per class unless stated. Government fees are non-refundable: an application refused, abandoned or wrongly classified forfeits the fee. Professional charges are separate and are not regulated — compare quotes on the scope of work, not on the headline number.

The agent question, decided honestly

You can file yourself. The form is not complicated and the portal is navigable. What you are buying from a professional is not the keystrokes; it is the clearance search, the class strategy, the specification drafting and the response to an examination report. A competent filing costs a fraction of a bad one, and a bad one costs the fee plus a year.

A reasonable division: do the clearance search and the specification yourself if you are willing to learn it, and pay for the examination-report reply, which is where applications actually die. If you use an agent, the authorisation is filed in Form TM-M. Note the current position clearly, because a great deal of outdated material is still circulating: under the Trade Marks Rules, 2017, Rule 19(1) requires the authorisation of an

agent under Section 145 to be executed in Form TM-M. The old standalone Form TM-48 of the 2002 Rules no longer exists. An application supported by a TM-48 today is treated as one without a valid authorisation on file.

PART 6

Word mark or logo: the decision that decides your Amazon listing

If you file only one thing this year, file the word mark. It protects the name across typefaces, colours and stylisation, it is the version marketplaces can verify against your packaging text, and it is the version a copycat finds hardest to design around.

A device mark protects the artwork. That is valuable — a distinctive logo is a real asset — but it protects that drawing. A competitor who uses your name in a different typeface has not infringed a device mark in the way most brand owners assume.

	Word mark	Device (logo) mark
What is protected	The word itself, in any font, colour or style	The specific artwork as filed
Use when	Your name appears as plain text on packaging, listings and invoices	Your identity is a graphic that always appears as drawn
Marketplace match	Easiest — the brand name on packaging matches the mark text exactly	Works if the logo contains letters, words or numbers that match the brand name
Copycat exposure	Low — a different font does not escape	Higher — a restyled version may fall outside the registration
Fee	Same	Same

The marketplace rule that catches people

Amazon's Brand Registry requires that your trademark text matches the brand name on your application exactly, and that the brand name or logo is permanently affixed to your product or packaging. Amazon states plainly that its enrolled marks must be a text-based mark (word mark) or an image-based mark containing words, letters or numbers. A pure design with no characters does not qualify, however registrable it may be in India.

Amazon also warns about the exact-match trap in its own guidance: if the trademark is registered as "Buy with Prime" and the application shows "BuywithPrime", it will not be approved. Capitalisation differences are accepted; spacing and symbols are not. If you filed "ACME Naturals" and print "ACME" on the carton, you have a rejection, not a verification problem to argue about.

Permanently affixed has a specific meaning there: printing, sewing, laser etching or engraving applied during production. Stickers, labels, stamps and hang tags are treated as removable and are not accepted, and stock images, digitally altered images and computer-generated mockups are refused outright.

The filing strategy that covers both

File the word mark first, on the class of your core product. Add the device mark as a second application once the artwork is final, so that a later redesign does not leave your only registration pointing at a logo you no longer use. Two applications cost two fees; one badly chosen application costs the fee, a year, and a rebrand.

If budget forces a single choice, and your packaging carries the name as text — which is true for most Indian D2C brands — the word mark is the correct single choice.

> **The combination most Indian D2C brands end up needing**

> A word mark in the product class, a word mark in the retail-services class if you sell under your own name, and a device mark for the logo once it is stable. That is three applications. Sequence them across two financial years rather than filing all three on day one.

PART 7

The examination report: reading it and answering it

The application is examined, and the Registry searches earlier marks, registered or applied for, for identity or deceptive similarity in the same or similar classes. If the examiner objects, the objection arrives as a written examination report. Under Rule 33(4) of the Trade Marks Rules, 2017, you have one month from receipt to respond, failing which the Registrar may treat the application as abandoned.

That deadline is the single most expensive date in the whole process, because missing it does not produce a rejection you can appeal — it produces silence, and then abandonment. Service can be by email under Rule 18, so the clock may start earlier than the letter in your post box suggests.

Extension: one month, once, not automatic

Rule 109 allows an application in Form TM-M for extension of time, and the Registrar may extend by a period not exceeding one month if the circumstances justify it. File the request before the original month expires, give a real reason — waiting on a consent letter, collecting use evidence from a distant office — and prepare the reply anyway. An extension is a cushion, not a second deadline.

The two objections, and why the distinction matters

Almost every examination report raises one or both of two grounds, and they are answered in completely different ways.

Ground	What the examiner is saying	What actually answers it
Section 9 — absolute	The mark itself is not distinctive: descriptive, generic, customary, or caught by 9(2)	Argument on distinctiveness, plus evidence of use that has acquired it; or an amendment of the mark
Section 11 — relative	An earlier mark, or an earlier application, is identical or similar and confusion is likely	Distinctiveness of the marks, difference in goods or services, honest concurrent use under s.12, or a consent letter from the earlier proprietor

Section 11 objections are answered with comparison, not assertion. The examiner has cited a mark; you must show why the two are not deceptively similar — difference in the dominant element, difference in the goods or the trade channel, difference in the class of consumer. Section 2(1)(h) defines a mark as deceptively similar if it so nearly resembles another as to be likely to deceive or cause confusion, so the argument is always about likelihood, never about whether the two words are literally different.

Two structural provisions help. Section 11(4) provides that nothing in the section prevents registration where the proprietor of the earlier mark consents — so a consent letter, negotiated commercially, is often faster and cheaper than argument. Section 11(5) provides that a mark shall not be refused on the grounds in sub-sections (2) and (3) unless the objection is raised in opposition proceedings by the proprietor of the earlier mark. And Section 12 allows registration by more than one proprietor in cases of honest concurrent use or other special circumstances, on conditions the Registrar thinks fit.

The shape of a reply that works

Read the report twice. List each ground separately with its section number. A reply that answers one objection and ignores the other fails.

3. **Take the Section 9 grounds first.** If the mark is descriptive, no amount of comparison with other marks saves it. Either argue acquired distinctiveness with evidence or propose an amendment that adds a distinctive element.
4. **Then the Section 11 grounds, mark by mark.** For each cited mark, state the difference in the mark, the difference in the goods or services, and the class of consumer. Be specific — the examiner has the records in front of them.
5. **Attach evidence properly.** Invoices, GST returns, marketplace listings with dates, advertising spend, packaging photographs, social media with visible dates. Affidavit evidence carries more weight than assertions in the reply.
6. **Ask for a hearing if the argument is arguable.** Rule 33(6) provides for an opportunity of hearing where the response is not satisfactory or the applicant requests one. A hearing is a conversation; a reply is a document. Where the objection turns on judgment, the conversation is worth more.
7. **Never let the deadline pass while waiting for a document.** File the reply with what you have and seek an extension for the rest.

What happens after the reply

If the Registrar accepts the application, it is advertised in the Trade Marks Journal under Section 20(1). If the response is not accepted, or a hearing was requested, a hearing is scheduled and an order is passed. If you fail to appear at a scheduled hearing and no reply is on record, the Registrar may treat the application as abandoned.

> **The one habit that saves applications**
> Put the application number, the examination-report date and the reply deadline in a calendar the business owns, with a reminder at day 20 and another at day 27. Most abandoned applications are not abandoned by decision; they are abandoned because the email went to an inbox nobody monitored.

PART 8

Journal, opposition, and the four-month window

Acceptance is not registration. Once accepted, the application is advertised in the Trade Marks Journal, and from the date of that publication any person may oppose it. Under Rule 42(1), the notice of opposition is filed in Form TM-O within four months from the date of publication of the Journal in which the application was advertised or re-advertised.

The fee for a notice of opposition or a counter-statement is Rs 2,700 per class at e-filing, Rs 3,000 on physical filing. Where an opposition is filed against a single application covering several classes, it bears the fee for each class in relation to which it is filed.

If you are opposed, the sequence is fixed

Step	Who	Time limit	Form
Notice of opposition filed	Opponent	Within 4 months of Journal publication	TM-O
Copy of notice served on applicant	Registrar	Ordinarily within 3 months of receipt	—
Counter-statement filed	Applicant	Within 2 months of receipt of the notice	TM-O
Opponent's evidence by affidavit	Opponent	Within 2 months of service of the counter-statement	—
Applicant's evidence by affidavit	Applicant	Within 2 months of receipt of the opponent's evidence	—

Step	Who	Time limit	Form
Opponent's evidence in reply	Opponent	Within 1 month of receipt of the applicant's evidence	—
Hearing	Both parties	Not less than 1 month after the first notice of hearing	—

Two consequences in that table are unforgiving. If the opponent takes no action within two months of the counter-statement, the opposition is deemed abandoned. If the applicant takes no action within two months of receiving the opponent's evidence, the application is deemed abandoned. These are not deadlines the Registrar extends by courtesy; they are defaults built into the rules.

If you do not appear at the adjourned hearing, Rule 50(3) allows the application to be treated as abandoned. If the opponent does not appear, the opposition may be dismissed for want of prosecution and your application proceeds. Adjournments are available in Form TM-M with the prescribed fee, requested at least three days before the hearing, capped at two adjournments of not more than thirty days each.

The cheapest resolution is usually commercial

Most oppositions between small Indian brands are not about principle. They are about two businesses that picked similar names in the same class, one of which filed first. The instruments that end them without a hearing are a consent letter under Section 11(4), a coexistence agreement with defined limitations — different classes, different territories, different stylisation — or a negotiated withdrawal. All three are cheaper than evidence, hearings and appeals, and all three require you to talk to the other side early rather than at the hearing.

If you are the one opposing

Opposing is a commercial decision, not a reflex. It costs Rs 2,700 per class in government fee plus professional time, and it takes months. It is worth it when a later mark will genuinely erode your trade channel, when you have a registration to defend, or when the later applicant is a copycat trading on your packaging. It is not worth it when the marks sit in unrelated classes and the confusion is theoretical.

One timing note that surprises people: an opposition is the only route for certain grounds. Section 11(5) says a mark shall not be refused on the grounds in sub-sections (2) and (3) unless the objection is raised in opposition proceedings by the proprietor of the earlier mark. If you sleep through the four-month window, you have given up a ground you cannot raise later in the same way.

Registration, and what the certificate means

If no opposition is filed, or the opposition is decided in your favour, the mark proceeds to registration and a certificate is issued. The registration dates back to the date of application and runs for ten years from that date under Section 25(1). The certificate is not the end of the story — it is the beginning of a duty to use, to renew, and to record changes.

PART 9

Living with a registered mark

A registration is an asset that decays if you ignore it. Four obligations keep it alive: use it, mark it correctly, renew it, and record changes. Each has a statutory consequence for getting it wrong.

TM and the registered symbol are not interchangeable

The letters TM carry no legal status of their own. They signal that you claim the name as a brand, and you may use them from the day you start trading or file the application. The registered symbol may be used only after registration, and only in relation to the goods or services for which the mark is registered.

Using the registered symbol on an unregistered mark is an offence. Section 107 deals with falsely representing a trade mark as registered, and the penalty was changed materially by the Jan Vishwas (Amendment of Provisions) Act, 2023, whose trade-mark provisions came into force on 1 August 2024: the earlier exposure to imprisonment was replaced with a penalty calculated as the lower of 0.5 per cent of total sales or turnover, or Rs 5,00,000. The same amendment omitted Sections 106, 108 and 109 and introduced an adjudication mechanism under Sections 112A and 112B, with appeals within 60 days to an authority one rank above the adjudicating officer.

Practically: do not print the registered symbol on packaging until the certificate is in hand. Print TM, which is accurate at every stage.

Use it, or lose it

Section 47(1)(b) allows any person aggrieved to apply to remove a registered mark where, up to three months before the application, a continuous period of five years had elapsed during which the mark was registered and there was no bona fide use in relation to those goods or services. Section 47(1)(a) adds the case where the mark was registered without any bona fide intention to use it and there has in fact been no use.

The defence is documentary. Keep invoices, GST returns, marketplace listings, packaging, advertising and dated screenshots that show the mark in use on the goods it is registered for. A brand that registers defensively across six classes and trades in one is carrying five removals waiting to be filed.

Renewal, and the cost of forgetting

Registration runs for ten years and may be renewed for further ten-year periods under Section 25(2). The Registrar sends a notice before expiry, but the obligation is yours. The renewal fee is Rs 9,000 per class at e-filing, Rs 10,000 on physical filing.

Situation	What you pay per class	What happens
Renewal filed on time	Rs 9,000 (e-filing)	Registration continues for another 10 years
Renewal within 6 months after expiry	Rs 4,500 surcharge plus the renewal fee	Registration is preserved — Section 25(3) proviso
After that, removed from the register	Rs 9,000 restoration plus the renewal fee	Restoration possible between 6 months and 1 year from expiry, Section 25(4)

Missing the six-month grace period does not just cost more. It puts the mark off the register for a period during which anyone can file, and it converts a routine payment into an application to the Registrar asking him to be satisfied that it is just to restore.

Record the changes

If the proprietor's name or address changes, or the mark is assigned to a company, the register must be updated. Assignment or transfer of proprietorship is recorded in Form TM-P at Rs 9,000 per trademark at e-filing; a change of name or address of the registered proprietor falls in the Rs 1,800 or Rs 900 entries of Form TM-M depending on what is being changed. An unrecorded assignment creates a gap between who owns the mark in fact and who owns it on the register — exactly the gap that surfaces in due diligence or in an enforcement action years later.

> **The four-line register every brand should keep**
> Mark, class, application or registration number, and the next date that matters. One line per filing, in a sheet the founders can open. Add the examination-report deadline when it arrives and the renewal date when the certificate issues. Most brands lose protection to a spreadsheet that did not exist.

PART 10

Copyright for creators and product businesses

Copyright is the right you already have and almost never use. It arises automatically on creation, needs no formality, and lasts for sixty years after the author's death for literary, dramatic, musical and artistic works. Registration adds evidence, not ownership.

The Copyright Office puts it precisely: acquisition of copyright is automatic and does not require any formality, but the certificate of registration and the entries made in the Register serve as prima facie evidence in a court of law with reference to disputes relating to ownership.

What copyright covers, in the language of the Act

Section 2(o) defines a literary work to include computer programmes, tables, compilations and computer databases. Artistic work is defined to include a painting, sculpture, drawing (including a diagram, map, chart or plan), engraving or photograph, whether or not the work possesses artistic quality, plus works of architecture and works of artistic craftsmanship.

For a product business, that means the following are all separate copyright works, each owned separately unless assigned: the logo artwork, the label and packaging design, product photographs, the website copy, the product description text, the explainer video, the jingle, and the software behind the app.

The ownership trap, stated once

Copyright vests in the author — the person who actually created the work. The Copyright Office's own filing instructions state that the firm itself cannot be the author of a work except in the case of cinematograph film and sound recording. A company that commissions a logo therefore does not automatically own the copyright in it. What it owns depends entirely on what the contract says.

This is the most common and most expensive hole in Indian brand ownership. It surfaces at the worst possible moment: when you try to enforce your mark, when an investor's lawyer asks for the IP schedule, or when the designer who was paid three years ago sends a notice.

When registration is worth the fee

Work	Fee per work	Worth registering?
Literary, dramatic, musical or artistic work	Rs 500	Yes for logos and key brand artwork
Artistic work used or capable of being used in relation to goods or services	Rs 2,000	Yes — this is the logo-on-a-product case
Sound recording	Rs 2,000	If the audio is an asset you license or defend
Cinematograph film	Rs 5,000	If the film is a commercial asset
Computer programme / software	Rs 500 (literary work)	Yes if the code is the product
Change in particulars	Rs 200, or Rs 1,000 for the goods-and-services case	When ownership or details change

Note the second row. An artistic work that is used, or capable of being used, in relation to goods or services carries a fee of Rs 2,000 rather than Rs 500. That is the row that applies to a logo on a product. Filing it at Rs 500 is a defect that will be raised.

The TM-C certificate most people do not know about

Where the artistic work is used or capable of being used in relation to goods or services, the application must include a certificate from the Registrar of Trade Marks — a search certificate under Rule 22 — confirming that no identical or deceptively similar mark is registered in another person's name or applied for by another person.

That certificate is Form TM-C, and the government fee is Rs 9,000 at e-filing. It is the reason logo copyright registration costs more than people budget for: Rs 2,000 for the copyright filing plus Rs 9,000 for the search certificate. If the work is genuinely not used and not capable of being used with goods or services, the application can state that clearly instead — but a logo on a product is not that case.

There is a second affidavit requirement where the artistic work is capable of being registered as a design: a statement that it has not been registered under the Designs Act, 2000, and has not been applied to an article through an industrial process and reproduced more than fifty times. That is the boundary between copyright and design, and it is drawn at fifty reproductions.

Filing Form XIV, in order

1. **Create the account** on the Copyright Office e-filing portal and log in.
2. **Complete Form XIV** and save, then move to the statement of particulars.
3. **Keep the signature scanned** at the size the portal accepts before you start — the form cannot be completed without it.
4. **Fill the Statement of Particulars** — applicant, nature of interest, class and description of the work, title, language, author details, whether published, year and country of first publication, owners of the various rights.
5. **Fill the Statement of Further Particulars**, which applies to literary, dramatic, musical, artistic and software works — whether the work is original, a translation or an adaptation.
6. **Upload the work.** Artistic work in PDF or JPG; sound recording as MP3; literary, dramatic, musical and software work as a PDF under 10 MB. For software, the PDF must contain at least the first 10 and last 10 pages of source code, or the entire code if under 20 pages, with no blocked-out or redacted portions. Files must not be password protected.
7. **Pay** through the payment gateway. A diary number is generated — record it.
8. **Post the hard copies.** One print of the acknowledgement slip and one print of the registration form go by post to the Copyright Division, DPIET, Boudhik Sampada Bhawan, Plot No. 32, Sector 14, Dwarka, New Delhi 110078.

Two procedural details cause most of the delays. The application must be signed by the applicant — the author or owner — and Rule 70(3) does not provide for an attorney to sign Form XIV, the Statement of Particulars or the Statement of Further Particulars on the applicant's behalf. And where the author is someone other than the applicant, a No Objection Certificate in original from the author is required.

The 30-day window, and what follows

The applicant must give notice of the application to every person who claims or has an interest in the subject matter or disputes the applicant's rights. If no objection is received by the Registrar within thirty days of receipt of the application, the Registrar, if satisfied about the correctness of the particulars, enters them in the Register. If an objection is received, or the Registrar is not satisfied, an inquiry follows, with an opportunity of hearing before any rejection.

The registration is complete only when a copy of the entries is signed and issued by the Registrar or Deputy Registrar. A diary number is not a registration.

What copyright lets you stop

Infringement is defined in Section 51, and includes doing anything the exclusive rights cover without a licence, and making for sale, selling, distributing for trade, exhibiting in public or importing infringing copies. Criminal liability under Section 63 attaches to knowing infringement or abetment: imprisonment of not less than six months and up to three years, with a fine of not less than Rs 50,000 and up to Rs 2,00,000. On a second or subsequent conviction, Section 63A raises the minimum to one year and Rs 1,00,000.

Section 63B makes knowing use of an infringing copy of a computer programme on a computer an offence in its own right. And the offence is cognizable: a police officer not below the rank of sub-inspector may, on satisfaction, seize without warrant all copies of the work and all plates used for making infringing copies.

> **The sequence that costs least**
> Create. Assign in writing the same day. Register the logo once the artwork is final and you have the TM-C certificate. Keep the assignment, the invoice, the dated file and the certificate in one folder. That folder is what turns a complaint into a takedown.

PART 11

Design registration for shapes and packaging

Design protection is the instrument Indian product brands most often miss. A trademark protects what the product is called; a design protects what it looks like. If customers recognise your bottle, your box or your handle profile before they read the label, you have a design asset that no trademark filing reaches.

The Designs Act, 2000 protects the shape, configuration, pattern, ornament or composition of lines or colours applied to an article, judged by the eye. Registration is granted for a specific article in a specific class, and it is not a substitute for a trademark — it sits alongside it.

What it costs

Stage	Form	Natural person / startup / small entity	Other applicants
Application to register a design	Form 1	Rs 1,000	Rs 4,000
Extension of the period of copyright by five years	Form 3	Rs 2,000	Rs 8,000
Restoration of a lapsed design	Form 4	Rs 1,000	Rs 4,000
Additional fee for restoration	Form 4	Rs 1,000	Rs 4,000
Claim to proceed as applicant or joint applicant	Form 2	Rs 500	Rs 2,000
Inspection of a registered design	Form 5	Rs 500	Rs 2,000
Petition for cancellation of a design	Form 8	Rs 1,500	Rs 6,000
Notice of opposition	Form 19	Rs 400	Rs 400
Claiming the status of a small entity	Form 24	—	—

The fee slabs changed with the Designs (Amendment) Rules, 2021, which put natural persons, startups and small entities on the same lower rate and left everyone else at the higher one. A startup or small entity claims the lower rate by filing Form 24 with proof — the DPIIT recognition certificate or the Udyam certificate.

The filing sequence

3. **Search before you design.** Search existing registered designs on the official site and assess novelty. A design that is not new or original is refused, and the search is free.
4. **Identify the Locarno class and subclass.** India classifies designs under the International Classification for Industrial Designs (Locarno). If the design spans more than one class-subclass, separate applications are required.
5. **Prepare the representation.** Four similar copies of the drawings, tracings, photographs or specimens, exactly as the request describes them.
6. **File Form 1** on the e-filing portal with the applicant details, the design representation and the fee.
7. **Respond to objections.** Defects must be corrected and resubmitted within the time allowed from the official date of the application.
8. **Publication and certificate.** On acceptance the design is registered, a certificate is issued, and the particulars are published in the Design Journal.

The term, and the trap at year ten

A registered design lasts ten years from the date of registration and can be extended by five more years on Form 3 before the first ten years end. There is no recurring renewal. That single extension is the deadline brands forget, because unlike a trademark there is no ten-year rhythm to build a habit around.

Section 22 provides the remedy for piracy of a registered design: the proprietor may claim damages and seek an injunction, with the statutory damages recoverable as a contract debt capped at Rs 25,000. That cap is why design registration is a supplement to a trademark strategy and not a substitute for it — the statutory damages figure is modest, and the real value is the injunction.

The copyright-versus-design boundary

The two overlap and the law draws a line. Where an artistic work is capable of being registered as a design and has been applied to an article through an industrial process and reproduced more than fifty times, copyright in it ceases and design protection is the route. That is why the copyright application asks, in terms, whether the work has been registered under the Designs Act and whether it has been applied industrially and how many times it has been reproduced.

For a brand printing thousands of units of a distinctive box, the answer to that question is what determines whether you are relying on copyright or on design — and getting it wrong means relying on neither.

> **When design is the right filing**
>
> You sell a physical product whose appeal is visual. The shape, the profile, the pattern or the surface ornament is what customers recognise. You manufacture at volume and expect copyists. If all four are true, a Rs 1,000 Form 1 filing is the cheapest protection in this playbook.

PART 12

Ownership: contracts, freelancers, employees

Everything above is filing. This section is the part that decides whether the filing is worth anything. A registration in the name of a business that does not own the underlying artwork is a registration with a defect at its root.

The three documents every brand needs

Document	Who signs	What it must say
IP assignment deed	Every designer, photographer, copywriter, developer, videographer	All rights in the deliverables assign to the business on payment; moral rights waived to the extent permitted; no further licence retained
Employment IP clause	Every employee who creates anything	Work created in the course of employment belongs to the employer; disclosure obligation; confidentiality survives exit
NDA	Anyone who sees the unlaunched brand, packaging or formula	Definition of confidential information, term, return or destruction on exit, remedies

The assignment must be in writing and signed. An oral understanding, a WhatsApp message saying "all yours" and a paid invoice are not an assignment of copyright. Section 19 of the Copyright Act requires an assignment to be in writing and signed by the assignor or an authorised agent, and to identify the work, the rights assigned, the duration and territorial extent.

The clauses that matter, in plain words

- **Present assignment, not a promise.** "The Designer hereby assigns to the Company all right, title and interest in the Deliverables" beats "the Designer agrees to assign". The first transfers on signature; the second leaves a step undone.
- **Moral rights.** Indian law recognises the author's special rights under Section 57, including the right to claim authorship and to restrain distortion. Ask for a waiver to the extent the law permits, and expect a professional to negotiate it.
- **Third-party material.** Require a warranty that nothing in the deliverable infringes anyone else's rights, and that all fonts, stock images and music are licensed for commercial use. An unlicensed font on a product label is a real claim, and it is the freelancer's invoice that will not cover it.
- **Source files.** The assignment is worth little if the business cannot open the file. Require delivery of editable source files as a condition of final payment.
- **Portfolio rights.** A designer will want to show the work. Grant a narrow, revocable licence for portfolio use only — not a general right to reuse the design.

Agencies, and the clause they will not volunteer

Agency contracts often transfer only the final deliverables and retain the working files, the concepts rejected along the way, and sometimes a licence back to reuse elements. Read the IP clause before you sign, not after the campaign runs. The three questions to ask are: who owns the rejected routes, who owns the source files, and can the agency reuse any element for another client in the same category.

If the answer to the last one is yes, you have funded your competitor's next campaign.

What to do about work already delivered

Most brands discover this problem retroactively. The remedy is a short, cheap piece of paperwork: a confirmatory assignment signed now, covering work delivered earlier, in exchange for a nominal consideration of Rs 1 and the goodwill of a continued relationship. It is not perfect — a court will ask why it was signed three years late — but it is far better than nothing, and most freelancers sign it without argument because they were paid and have no further interest.

> **The order of operations that avoids all of this**
> Contract with the IP clause first. Deliver and pay second. Take the signed assignment with the source files third. File the trademark fourth. Register the copyright fifth. Any other order leaves a gap, and gaps are what the other side finds.

PART 13

Marketplace protection: Amazon and Flipkart

For most Indian D2C brands the first place a copycat appears is a marketplace. Both large platforms run brand-protection programmes, and both gate entry on a trademark. The requirements differ in one decisive way: Amazon accepts a pending application, Flipkart's Brand Assure requires a registered mark.

Amazon Brand Registry

Enrolment is free. Amazon states two basic requirements: a brand name, or a logo that includes the brand name, permanently affixed to the products or packaging; and a pending or registered trademark for that brand name or logo issued by the designated government trademark office of a country with a corresponding Amazon store. IP India is on that list.

Requirement	What Amazon actually checks
Trademark status	Registered or pending application; the application number is accepted for a pending filing
Mark type	A text-based mark (word mark), or an image-based mark containing words, letters or numbers. A device-only mark with no characters does not qualify
Exact match	The trademark text must match the brand name on the application exactly. Capitalisation differences are accepted; spacing and symbols are not
Permanence	The brand must be permanently affixed — printing, sewing, laser etching or engraving applied during production. Stickers, labels, stamps and tags are not accepted
Images	Real product or packaging photographs. Stock images, digitally altered images and computer-generated mockups are refused
Ownership	The application must be submitted by the trademark owner. An agent must have the owner enrol first and then be added as an additional user
Verification	A verification code is sent to the contact on the trademark record; it must be confirmed within the stated window or the application is declined and must be resubmitted

Three practical consequences follow. First, the brand name you print must be the brand name you filed — decide the exact string before you print packaging, not after. Second, if your logo is a symbol with no letters, file a word mark or a lockup that includes the name. Third, keep the email address on the trademark record current, because the verification code goes there and a stale address is the most common reason a valid filing fails to enrol.

Amazon Transparency, and why it needs a registration

Transparency is the serialisation programme that requires every unit to carry an Amazon-issued code. Eligibility is stricter than Brand Registry: an active Brand Registry account with the rights-owner role, an active **registered** trademark, and a GTIN for each product to be enrolled. In India, Transparency currently accepts only Amazon-issued codes. A pending application will not get you in.

Flipkart Brand Assure

Flipkart's programme is run through Brand Hub. The stated prerequisites are a valid trademark registration number, a current GSTIN for tax compliance, and a brand authorisation letter if you are representing another brand. Flipkart states directly that a pending trademark is not accepted — a registered trademark is required.

Once enrolled, the portal provides violation reporting against infringing listings, a case tracker with the ability to reply to cases, and a manage-sellers function through which you authorise or mark sellers as unauthorised for your brand. Flipkart states that within 72 hours of successful registration its Brand Assure team reaches out to onboard the brand. As of December 2025 the programme had onboarded over 11,000 brands.

	Amazon Brand Registry	Flipkart Brand Assure
Cost	Free	No enrolment fee stated
Trademark status accepted	Pending application or registration	Registration only
Other prerequisites	Permanently affixed brand on product or packaging; real product photographs	GSTIN; brand authorisation letter if representing another brand
Enrolment path	Brand Registry portal, using Seller Central credentials	Brand Hub enrolment
Violation reporting	Report a violation from the Brand Registry console	Report Violations section of the Brand Assure account
Seller control	Roles and user management across the brand	Manage Sellers — verify or mark sellers unauthorised

> **The sequencing consequence**
> Amazon will let you in on a pending application today. Flipkart will not. If Flipkart is a material channel, your registration timeline is a commercial deadline, not a legal formality — plan the filing around the date you need the certificate, and consider whether expedited examination at Rs 20,000 or Rs 40,000 per class is cheaper than the months of unprotected selling.

What the programmes do not do

Enrolment is not enforcement. Brand Registry gives you the tools to report infringements and control your detail pages; it does not monitor for you, and it does not decide disputes in your favour automatically. Reports need evidence — the registration number, the infringing listing, screenshots with dates, and a clear statement of what right is being infringed. The next section is how to assemble that.

PART 14

Copycat defence: the evidence pack and the takedown ladder

Enforcement is a sequence of escalating cost, and the right move is almost always the cheapest one that works. Most copycats fold at the platform complaint or the first letter. The brands that lose are the ones that go straight to a lawyer, or the ones that have no evidence and therefore cannot start at all.

Build the evidence pack before you need it

A takedown without evidence is an allegation. The pack below takes an afternoon to assemble and is the difference between a complaint that is actioned and one that is closed.

Item	Why it matters
Trademark certificate, or the application number and filing receipt	Establishes the right you are asserting
Copyright registration certificate, if the claim is in the artwork	Converts ownership from a fact to be proved into prima facie evidence
Dated screenshots of your own listings, packaging and website	Establishes what your brand looked like and when
Photographs of your product showing the brand permanently affixed	Meets the marketplace's permanence test
Invoices and GST returns showing sales under the mark	Proves use, which every forum asks about
Signed IP assignments from designers and photographers	Closes the chain of title the other side will attack

Item	Why it matters
Dated screenshots of the infringing listing, with the URL and the date visible	The specific evidence of the act complained of
A purchase of the infringing product, with the invoice and photographs of what arrived	The strongest single piece of evidence in a counterfeit case

The ladder, in order of cost

1. **Platform complaint.** File through Amazon Brand Registry's violation reporting or Flipkart Brand Assure's Report Violations. Free. Fastest for listings. Attach the registration and the dated screenshots. Keep the case ID.
2. **Direct notice to the seller.** A short, factual letter or email to the infringing seller, copying the marketplace's grievance contact, often resolves a reseller dispute without escalation. State the right, the act, the demand and a deadline.
3. **Cease and desist notice.** A formal letter from you or your advocate, setting out the registration, the infringing acts, the demand to stop and to account, and a deadline. This is the step that most commercial disputes end at.
4. **Grievance escalation under platform policy.** Both platforms run formal grievance processes with defined response obligations. Escalate the case ID rather than filing a fresh complaint.
5. **Civil action.** A suit for infringement under Section 29 and for passing off, filed before the District Court under Section 134, with relief available under Section 135 including injunction and damages. Interim injunctions are the practical objective; the trial is the long tail.
6. **Criminal complaint.** Sections 103 and 104 make falsifying and falsely applying a trade mark, and selling goods to which a false mark is applied, punishable with imprisonment of six months to three years and a fine of Rs 50,000 to Rs 2,00,000. These offences are cognizable. This route is for counterfeiting, not for a similar-sounding name.

What a cease and desist letter must contain

- The registration number, the class, and the goods or services it covers — the right being asserted.
- The specific acts complained of, with dates, URLs and screenshots as annexures.
- A statement of the demand: cease all use, withdraw the listings, destroy the infringing stock, confirm compliance in writing by a stated date.
- A reservation of rights, including the right to claim damages and costs.
- A deadline that is short enough to matter and long enough to be reasonable — seven to fourteen days is normal.

What it must not contain is a threat you will not carry out. Section 142 of the Trade Marks Act provides a remedy for groundless threats of legal proceedings: a person aggrieved by a threat of infringement proceedings may seek a declaration that the threat is unjustified, and an injunction against continuing it. A letter that overstates your rights is a liability, not a tactic.

Where passing off carries the case

If the mark is unregistered, the action is passing off and the elements are different: reputation or goodwill in the mark, misrepresentation by the other side, and damage. Reputation is proved with sales, advertising, media and consumer evidence. It is a heavier case, which is the whole argument for registration — the same facts, but with a certificate that shifts the burden at the start.

The counter-attack to expect

A well-advised infringer does not defend; it attacks the registration. Expect a petition for cancellation or rectification, or a claim that the mark was wrongly registered. Section 47 allows removal for non-use, and Section 57 provides rectification of the register. That is why the use file — invoices, listings, packaging, dated screenshots — is not bureaucracy. It is the defence.

> **The cheapest protection is a dated record**
> Most enforcement succeeds or fails on whether the brand can produce a dated, organised record of use. Keep the folder current: packaging photographs, listing screenshots with dates, invoices, and the registration certificates. An afternoon of filing beats a year of litigation.

PART 15

Protecting the brand abroad

Trademark rights are territorial. An Indian registration gives you nothing in the UAE, the UK or the United States. If you export, sell on an overseas marketplace, or plan to, the international question arrives earlier than most founders expect — often when a distributor abroad registers your name first.

The Madrid route, for Indian applicants

India acceded to the Madrid Protocol on 8 April 2013, and it entered into force for India on 8 July 2013. An Indian applicant can file a single international application through the Indian registry, designating any of the member territories, based on a "basic mark" — an application or registration already filed or obtained in India.

The fees, payable to WIPO in Swiss francs, cover ten years and comprise a basic fee of 653 Swiss francs where no reproduction of the mark is in colour, or 903 Swiss francs where any reproduction is in colour; an individual fee for each designated territory that has fixed one; a complementary fee of 100 Swiss francs for each designated territory that has not; and a supplementary fee of 100 Swiss francs for each class beyond three, except where only territories with individual fees are designated. The Indian registry charges a handling fee of Rs 5,000 for certification and transmission of the international application.

The five-year dependency you must understand

For five years from the date of the international registration, it remains dependent on the basic mark in India. If the basic application is refused or withdrawn, or the basic registration is cancelled, revoked or lapses within that period, the international registration is cancelled to the same extent. After five years it becomes independent.

That dependency changes strategy. Filing internationally on the back of a shaky Indian application means a problem at home becomes a problem in every designated territory at once. Where the Indian mark is contested, resolve it before designating the markets you care about.

Timelines and refusals

Each designated territory examines the international registration under its own law and may refuse protection. India, as a designated party, has declared an 18-month limit to notify a refusal, extendable where the refusal results from an opposition. Where no refusal is notified within the applicable period, protection in that territory is the same as if the mark had been registered directly there, from the date of the international registration.

The cheaper alternative, sometimes

The Madrid route is not always cheaper. Where you need one or two countries and your Indian filing is weak, national filings through local agents can be more predictable, because each application stands or falls on its own facts rather than dragging the basic mark with it. The comparison is not the fee table; it is the fee table plus the risk of dependency.

Situation	Route
One or two export markets, Indian mark contested	National filings in each market
Four or more markets, Indian mark clean	Madrid, designating all of them
Selling on an overseas marketplace	National filing in that marketplace's country; most require a local registration
Manufacturing for export only, no local sales	Usually no filing needed in the destination — check the distributor agreement instead
Licensing or franchising abroad	National filings in the licensee's territory before the agreement is signed

PART 16

The 90-day plan and three budgets

Everything above collapses into one question: what do I do, in what order, with the money I have. Here is the sequence, then three budgets at different levels of ambition.

Days 1 to 30: decide and clear

- Shortlist three names, ranked. For each, run the full clearance search — exact, phonetic, contains, related classes, and the Journal.
- Check the domain and the marketplace handle for the top two. Availability is not protection, but unavailability is a reason to demote a name.
- Choose the class or classes for what you actually sell, and for how you sell it if you trade under your own name.
- Draft the specification in plain words for each class.
- Get the Udyam certificate if you do not have one. It is free and it halves every government fee from here.

Days 31 to 60: file and secure

- File Form TM-A for the word mark in the core class, or classes. Record the application number the same day.
- Sign IP assignment deeds with every designer, photographer and developer who has touched the brand. Retroactive if you must.
- Once the artwork is final, file the device mark, and start the copyright registration for the logo — remembering the TM-C search certificate at Rs 9,000.
- Enrol on Amazon Brand Registry using the application number, if the marketplace matters.

Days 61 to 90: build the file

- Assemble the evidence pack: certificates, receipts, dated listing screenshots, packaging photographs, invoices.
- Set up the register — one line per filing, with the next date that matters.
- Diarise the examination-report window. When the report arrives, you have one month.
- If Flipkart is a material channel, decide whether expedited examination is worth the fee.

- Put the copycat ladder in writing somewhere the team can find it, so the first response is a process rather than a panic.

Three budgets, at 2026 government fee rates

	Lean	Standard	Full
Word mark, 1 class (individual/startup/small enterprise)	Rs 4,500	Rs 4,500	Rs 4,500
Retail-services class	—	Rs 4,500	Rs 4,500
Device mark, 1 class	—	—	Rs 4,500
Copyright for the logo (artistic work used with goods)	—	Rs 2,000	Rs 2,000
TM-C search certificate for the copyright filing	—	Rs 9,000	Rs 9,000
Design registration, 1 design	—	—	Rs 1,000
Agent authorisation, TM-M	Rs 900	Rs 900	Rs 900
Government fee total	Rs 5,400	Rs 20,900	Rs 26,400
Typical professional fees, if used	Rs 0 to 3,000	Rs 8,000 to 15,000	Rs 15,000 to 30,000

The lean column is a do-it-yourself filing of one word mark in one class, with no professional help. It is genuinely viable, and it is what a solo founder should do this month rather than wait for the standard budget. The standard column is what a trading D2C brand with an online storefront should aim for. The full column is for a product brand whose packaging and shape are the asset.

What none of these columns includes is the renewal at year ten, the opposition you might face, or the expedited examination fee if a marketplace deadline forces it. Budget for the renewal now — Rs 9,000 per class — so that it is a line item rather than a surprise.

> **The single highest-return action**
> File the word mark this month, in the class you actually sell in, with the Udyam certificate attached. Everything else in this playbook can follow. The filing date cannot be recovered once someone else has it.

PART 17

Sector notes: the same law, different first move

The statute does not change by industry, but the first filing does. What follows is the specific advice for six business types that make up most of India's small-brand economy — the classes to file, the risk that actually bites, and the trap that catches this sector more than others.

D2C skincare, cosmetics and personal care

File Class 3 for the products and Class 35 for the retail service if you sell under your own name. Class 5 becomes relevant the moment you make a claim that crosses into medicated or therapeutic territory — sunscreen with a drug claim, an anti-acne formulation, a supplement. That reclassification is not cosmetic: it changes the class you need, and an application in Class 3 alone will not cover a product the regulator treats as a drug.

The trap in this sector is packaging. Skincare brands put enormous value in the bottle, the pump and the carton, and then protect only the name on them. A design registration on the primary container, at Rs 1,000 for a natural person, startup or small entity, is the cheapest filing in the category. The second trap is the claim itself: an unsubstantiated efficacy claim is a consumer-law exposure running in parallel with your IP work, and no trademark registration protects you from it.

Packaged food, spices and snacks

Classes 29 and 30 for the goods, Class 43 if you run an outlet, and Class 35 if you sell direct under your own name. Most Indian food brands need at least two of these, and the retail class is the one most often missed.

The trap here is descriptiveness under Section 9(1)(b). Food branding drifts towards the descriptive — "Ghar Ka", "Pure Desi", "Homemade", "Shudh" — and every one of those is an indication of kind, quality or geographical origin. Section 9(1)(b) refuses marks consisting exclusively of such indications. The proviso saves a mark that has acquired distinctiveness through use, which means an established brand can sometimes get through on evidence, but a new brand cannot. Build the distinctive element into the name from the start rather than paying for a refusal.

The second trap is the label as a copyright work. A food label is an artistic work used in relation to goods, which means the copyright filing attracts the Rs 2,000 fee and needs the TM-C search certificate at Rs 9,000. Budget for both, or file nothing and rely on the trademark alone.

Clothing and footwear labels

Class 25 for the garments, Class 35 for the retail and online store service. This sector has the highest rate of copycat listings on marketplaces, because the product is easy to reproduce and the brand is the only differentiator.

The trap is the exact-match rule. A clothing label often prints a short form on the woven label and the full name on the carton — "ACME" on the tag, "ACME Studio" on the box. Amazon's requirement is that the trademark text match the brand name on the application exactly, with capitalisation differences accepted but spacing and symbols not. Decide the single string before the labels are woven, and file that string.

The second trap is permanence. Amazon does not accept stickers, labels, stamps or tags as permanent affixation, and specifically lists printing, sewing, laser etching and engraving as acceptable. A brand whose name appears only on a sewn-in tag that could be removed has a verification problem, not a documentation problem, and the fix is in production rather than in the portal.

Software, SaaS and apps

Class 9 for downloadable software and Class 42 for software as a service, design and technology services. Filing only Class 9 covers the download and leaves the subscription business unprotected, which is the wrong way round for a SaaS company.

The trap is ownership of the code. Copyright in a computer programme is a literary work, registration costs Rs 500 per work, and the filing requires the first 10 and last 10 pages of source code, or the entire code if under 20 pages, with no redacted portions. That is uncomfortable for most founders, which is why they skip it — and then discover during diligence that their contract developers in another country were never assigned the copyright.

The second trap is the product name versus the company name. A SaaS business often registers the company at the MCA and assumes the product name is covered. It is not. The product name needs its own application, in its own classes, in the name of whichever entity will own it.

Coaching institutes and course creators

Class 41 for education and training services and Class 9 for downloadable course material, recorded lectures and apps. A creator selling recorded courses needs both; an institute running only physical classes needs Class 41 and, if it sells branded merchandise, the relevant goods class.

The trap is the course content itself. The syllabus, the notes, the recorded lectures and the slide decks are all separate copyright works, and the teachers who created them are separate authors. An institute whose faculty wrote the material without an assignment owns a licence at best. When a popular teacher leaves

and starts a competing institute with the same notes, the question is not who taught the class; it is who owns the notes.

The second trap is the name of the course versus the name of the institute. "Foundation Batch" is descriptive and will be refused under Section 9(1)(b). The institute's name is the registrable asset; the batch names are not.

Salons, clinics and local service businesses

Class 44 for medical, hygienic and beauty care services; Class 35 if you run a retail or franchise operation; Class 3 or 5 if you also sell own-label products. A single-location salon needs Class 44 and little else. The moment franchising is on the table, the classes change and the ownership structure matters more than the filing.

The trap is franchising without owning the name. A salon chain that licenses its name to franchisees without a registered trademark is licensing something it cannot defend, and the first franchisee who leaves and opens next door under a similar name has exposed the whole model. Register before the first franchise agreement, not after the third.

The second trap is the practitioner's name. A clinic built on a doctor's personal name is not easily registrable as a mark if it falsely suggests a connection with a living person, and Section 14 lets the Registrar require that person's written consent. Build the brand on a name the business owns rather than one that walks out with a professional.

> **The common thread across all six**
> Decide the exact brand string, decide the two or three classes you actually trade in, and file the word mark before you print. Every sector's specific trap is a variation on failing to do one of those three things early.

PART 18

Templates

Nine working documents. They are starting points, not legal advice, and the high-value ones should be reviewed by an advocate before they are sent. Replace everything in square brackets.

Template 1 — Name clearance worksheet

Field	Entry
Candidate name	[NAME]
Exact match search, classes [x]	[Result — mark, number, class, status, proprietor]
Phonetic variants searched	[K/C, double letters, dropped vowels, Z/S — list each]
Contains and starts-with search	[Result]
Related classes searched	[Classes]
Vienna code search for the device	[Codes and result]
Journal search, recent publications	[Result]
Similar marks found and why they are or are not a risk	[One line each]
Decision	[Proceed / Demote / Reject]
Searched by and date	[Name, dd/mm/yyyy]

Template 2 — Goods and services specification worksheet

Field	Entry
Class	[Number]
Class heading (reference only)	[Heading text]
What we actually sell	[Plain-language list, one per line]
Specification as filed	[Comma-separated, plain terms, drawn from accepted descriptions]
Items deliberately excluded	[Items we do not trade in and will not claim]
Evidence we can show for each item	[Invoice, listing, packaging]

Template 3 — Examination report reply skeleton

Structure, not wording. The argument has to be yours and it has to be specific to the cited marks.

1. Heading: application number, mark, classes, date of the examination report, and the fact that the reply is within the period under Rule 33(4).
2. A table listing every ground raised, each with its section number and a one-line summary of the objection.
3. Section 9 responses: for each absolute ground, the distinctiveness argument, the evidence of acquired distinctiveness, and any proposed amendment.
4. Section 11 responses: for each cited mark, a separate paragraph on the difference in the mark, the difference in the goods or services, and the class of consumer, with the comparison test applied.
5. Any consent letter, coexistence agreement or Section 12 honest-concurrent-use submission, annexed.
6. Evidence: list of annexures with a one-line description of each.
7. Prayer: acceptance of the application, or in the alternative an opportunity of hearing under Rule 33(6).
8. Signature, place, date.

Template 4 — Cease and desist letter

On your letterhead, or your advocate's. Keep it to one page plus annexures.

Subject: Unauthorised use of the registered trade mark [MARK], registration no. [NUMBER] in class [CLASS].

I write on behalf of [BRAND], proprietor of the registered trade mark [MARK] under registration no. [NUMBER] dated [DATE] in class [CLASS] in respect of [GOODS OR SERVICES]. Our client has used the mark continuously since [DATE] and holds [revenue or listing evidence, one line].

It has come to our client's attention that [SELLER] is using [the mark or a deceptively similar mark] in relation to [goods or services] on [platform, URL], as evidenced by the screenshots annexed and marked Annexure A. The use is without our client's licence or consent.

The use infringes our client's registered trade mark under Section 29 of the Trade Marks Act, 1999 and amounts to passing off. We require that you: (a) immediately cease all use of the mark or any deceptively similar mark; (b) withdraw and delist all infringing listings by [DATE]; (c) destroy or deliver up all infringing stock, packaging and promotional material; and (d) confirm compliance in writing by [DATE].

Our client reserves all rights, including the right to seek injunctive relief, damages, delivery up and costs, and to pursue the criminal remedies available under Sections 103 and 104 of the Act. Nothing in this letter waives any right. This letter is sent without prejudice to those rights.

Template 5 — Platform takedown notice

Field	What to put
Right asserted	Registered trade mark no. [NUMBER], class [CLASS]; or copyright registration no. [NUMBER]
Infringing listing	URL, seller name, screenshot date
What is infringed	One sentence: the listing uses the mark [MARK] or a deceptively similar mark on identical goods
Evidence attached	Certificate, dated screenshots of our own listing, packaging photographs, purchase invoice if applicable
Requested action	Removal of the listing and action against the seller under the programme's policy
Contact	Name, designation, email, phone — the person authorised to correspond

Template 6 — IP assignment deed (freelancer or agency)

Deed of Assignment of Intellectual Property. Between [ASSIGNOR], [address] (the Assignor) and [COMPANY], [address] (the Company).

In consideration of the sum of Rs [AMOUNT] paid by the Company to the Assignor, receipt of which the Assignor acknowledges, the Assignor hereby assigns to the Company absolutely and with full title guarantee all right, title and interest in and to the following works: [describe each deliverable — logo, label artwork, photographs, copy, code], including all copyright, design rights and all other intellectual property rights therein, throughout the world, for the full term of those rights.

The Assignor warrants that: the works are original and do not infringe the rights of any third party; all third-party elements including fonts, stock images, music and software are licensed for the Company's commercial use; the Assignor has full right and authority to enter into this assignment; and the Assignor has delivered all editable source files.

The Assignor waives, to the extent permitted by law, all moral rights under Section 57 of the Copyright Act, 1957 in respect of the works, save for a non-exclusive, revocable right to display the works in a professional portfolio.

This assignment is governed by the laws of India and the courts at [CITY] have exclusive jurisdiction. Signed by the Assignor and for and on behalf of the Company, dated [DATE].

Template 7 — Employment IP and confidentiality clause

"All intellectual property created by the Employee in the course of employment, including inventions, designs, artwork, content, code, documentation and know-how, shall vest in the Company absolutely from the moment of creation. The Employee shall disclose all such work to the Company promptly and shall execute any document reasonably required to perfect the Company's title, including assignments and registrations, both during employment and after it ends. The Employee shall not use or disclose any confidential information of the Company during employment or at any time afterwards, and shall return or destroy all such information on cessation of employment."

Template 8 — Evidence log

Date	What happened	Document held	Where filed
[dd/mm/yyyy]	First sale under the mark	Invoice no. [x]	[Folder]
[dd/mm/yyyy]	Packaging printed with the mark affixed	Photograph, printer invoice	[Folder]
[dd/mm/yyyy]	Marketplace listing went live	Dated screenshot, URL	[Folder]
[dd/mm/yyyy]	Application filed	TM-A receipt, application no.	[Folder]

Date	What happened	Document held	Where filed
[dd/mm/yyyy]	Infringing listing spotted	Dated screenshot, URL	[Folder]
[dd/mm/yyyy]	Complaint filed	Case ID	[Folder]

Template 9 — Renewal and deadline tracker

Mark	Class	App / Reg no.	Filed	Next deadline	What it is
[MARK]	[C]	[Number]	[Date]	[Date]	Examination report reply — 1 month
[MARK]	[C]	[Number]	[Date]	[Date]	Opposition window closes — 4 months from Journal
[MARK]	[C]	[Number]	[Date]	[Date]	Renewal — 10 years from filing
[DESIGN]	[Locarno]	[Number]	[Date]	[Date]	Extension of term — before year 10

PART 19

Questions people actually ask

Do I need a trademark to start selling?

Legally, no. Commercially, you need one before you build a brand you would mind losing. Without it you cannot sue for infringement, cannot enrol in Flipkart's Brand Assure, and cannot use Transparency. You can enrol in Amazon Brand Registry on a pending application, which is the fastest partial protection available.

Is a company name or GST registration the same as a trademark?

No, and the confusion is expensive. A company registration with the Ministry of Corporate Affairs stops another company registering the identical name at MCA level. It does nothing to stop a different business using a similar brand on products or on a marketplace. GST registration is a tax registration and has no bearing on brand ownership. The only document that gives exclusive rights in a brand name for specific goods or services is a registered trademark.

How long does registration take?

The Trade Marks Registry does not promise a fixed total duration. The stages are examination, publication in the Trade Marks Journal, a four-month opposition window after publication, and registration if no opposition is filed. Expedited examination under Rule 34 is ordinarily completed within three months of the request, at Rs 20,000 per class for individuals, startups and small enterprises, or Rs 40,000 for others. Plan on months, not weeks, and plan the marketplace timeline around the application number rather than the certificate.

Can I file before I launch?

Yes. Section 18 permits an application on a proposed-to-be-used basis. That secures the filing date and gives you an application number for Amazon while packaging and listings are still being finalised.

What is the difference between TM and the registered symbol?

TM asserts a claim to the name and can be used from day one. The registered symbol may be used only after registration and only for the goods or services registered. Using it on an unregistered mark is an offence under Section 107, and the penalty since 1 August 2024 is calculated as the lower of 0.5 per cent of turnover or Rs 5,00,000.

Someone is using my name in a different class. Can I stop them?

Sometimes. Section 29(4) covers use on dissimilar goods or services where the registered mark has a reputation in India and the use without due cause takes unfair advantage of or is detrimental to its distinctive character or repute. That is a higher bar than same-class infringement and it needs evidence of reputation. If the mark is well known, Section 11(2) blocks registration in dissimilar classes too.

Do I have to register copyright if I have a trademark?

They protect different things, so no single filing covers both. A trademark protects the sign as a source identifier; copyright protects the artwork itself. If your logo is valuable as artwork — and it usually is — the copyright registration is the piece that stops a competitor redrawing it for a different product category.

Why does logo copyright cost more than the fee list suggests?

Because an artistic work used or capable of being used with goods or services attracts a Rs 2,000 fee rather than Rs 500, and the application must be accompanied by a search certificate from the Registrar of Trade Marks — Form TM-C, Rs 9,000 at e-filing.

What happens if I miss the examination report deadline?

Under Rule 33(4), if you fail to respond within one month, the Registrar may treat the application as abandoned. There is one extension available under Rule 109, of up to one month, on Form TM-M, if the circumstances justify it — and it is not automatic.

Can I get an extension on the opposition deadline?

The four-month window under Rule 42(1) runs from the Journal publication date. Treat it as fixed. The deadlines that follow — the two-month counter-statement, the two-month evidence rounds — are where the defaults bite hardest, because missing them deems the opposition or the application abandoned.

What does an agent authorisation look like now?

Form TM-M, under Rule 19(1) of the Trade Marks Rules, 2017. The old Form TM-48 belonged to the 2002 Rules and no longer exists. Filing a TM-48 today is treated as an application without a valid authorisation on file.

Is the fee really per class?

Yes, per class and per mark. A three-class filing at the concession rate costs Rs 13,500; at the standard rate, Rs 27,000. Two marks in two classes each is four class-fees, not two.

How do I get the Rs 4,500 rate?

Be an individual filing in your own name, a DPIIT-recognised startup, or a micro, small or medium enterprise with a Udyam certificate. Attach the certificate at filing. Without it the application is processed at Rs 9,000 per class and the difference is not refunded.

What if the examiner cites a mark I have never heard of?

Read what it is registered for. Many citations are in classes far from your trade. The reply compares the marks and the goods or services; where the citation is genuinely close, a consent letter under Section 11(4) is often faster and cheaper than argument.

Can two businesses own a similar mark?

Yes, in defined circumstances. Section 12 allows registration by more than one proprietor in cases of honest concurrent use or other special circumstances, on conditions the Registrar imposes. In practice this is achieved through a coexistence agreement that defines classes, territories or stylisation.

What happens if I stop using the mark?

It becomes vulnerable. Section 47(1)(b) allows removal where a continuous period of five years has elapsed with no bona fide use in relation to those goods or services, counted up to three months before the removal application.

Do I need a design registration if I have a trademark on the packaging?

If the shape or surface appearance is what customers recognise, yes. A trademark on the label does not protect the bottle. Design registration is Rs 1,000 for a natural person, startup or small entity, and it lasts ten years with a five-year extension available.

Is a design registration renewable?

Not in the recurring sense. It lasts ten years and can be extended once, by five years, on Form 3 before the first ten years end. There is no second extension.

What is the cheapest way to stop a copycat on Amazon?

Report the violation through Brand Registry, with the registration number and dated screenshots. It is free, it is faster than any legal route, and it works when the evidence is clean. The cases that fail are the ones filed without the certificate or without proof of your own use.

Should I register in every class to be safe?

No. Every class is a fee, and every class you do not trade in is a removal risk under Section 47. Register what you sell, plus the retail-services class if you trade under your own name, and add classes as the business proves them.

Can I sell my brand, or licence it?

Yes. Assignment or transfer of proprietorship is recorded in Form TM-P at Rs 9,000 per trademark at e-filing. Licensing is permitted, and recording a registered user is a separate filing. Either way, the underlying copyright assignments must be in place first, or you are selling a name without the artwork.

What if my designer refuses to sign an assignment?

Then you do not have clean title, and the honest options are to negotiate, to pay for the assignment, or to replace the work. What you should not do is proceed as though the invoice settled it. This is the one problem in this playbook that cannot be fixed by filing anything.

Does the fee schedule change?

The figures in this playbook are the government fees in the First Schedule to the Trade Marks Rules, 2017 and the corresponding schedules for copyright and designs, as published by the Intellectual Property Office. Fees and forms do change by notification. Check the official fee schedule on the IP India site on the day you file, and treat this playbook's numbers as the planning baseline rather than a quotation.

PART 20

The fee sheet and glossary

One-page fee sheet, 2026 government rates

Action	Form	Fee (e-filing)
Trademark application, individual / startup / small enterprise	TM-A	Rs 4,500 per class
Trademark application, company or other	TM-A	Rs 9,000 per class
Agent authorisation	TM-M	Rs 900
Trademark search and certificate (Rule 22(1))	TM-C	Rs 9,000

Action	Form	Fee (e-filing)
Expedited examination, individual / startup / small enterprise	TM-M	Rs 20,000 per class
Expedited examination, others	TM-M	Rs 40,000 per class
Opposition or counter-statement	TM-O	Rs 2,700 per class
Renewal, every 10 years	TM-R	Rs 9,000 per class
Renewal with surcharge, within 6 months of expiry	TM-R	Rs 4,500 + renewal fee
Restoration and renewal after removal	TM-R	Rs 9,000 + renewal fee
Assignment or transfer of proprietorship	TM-P	Rs 9,000 per mark
Well-known marks list	TM-M	Rs 1,00,000
Copyright, literary / dramatic / musical / artistic	Form XIV	Rs 500 per work
Copyright, artistic work used with goods or services	Form XIV	Rs 2,000 per work
Copyright, sound recording	Form XIV	Rs 2,000 per work
Copyright, cinematograph film	Form XIV	Rs 5,000 per work
Design application, natural person / startup / small entity	Form 1	Rs 1,000
Design application, other applicants	Form 1	Rs 4,000
Design term extension by 5 years	Form 3	Rs 2,000 / Rs 8,000
Madrid handling fee, certification and transmission	MM2(E)	Rs 5,000
Udyam / MSME registration	—	Free

Glossary

Absolute grounds. The Section 9 grounds on which a mark is refused because of what the mark itself is — descriptive, generic, customary, deceptive, scandalous, or barred by the Emblems and Names Act.

Acquired distinctiveness. Distinctiveness a mark gains through use before the application date, which can save a mark that would otherwise be refused under Section 9(1).

Basic mark. The Indian application or registration on which a Madrid Protocol international application is founded. It governs the international registration for five years.

Class. One of the 45 Nice classes — 1 to 34 for goods, 35 to 45 for services. The filing fee is charged per class, per mark.

Deceptively similar. Defined in Section 2(1)(h): a mark that so nearly resembles another as to be likely to deceive or cause confusion.

Device mark. A mark filed as an image — a logo or figurative element. Contrasted with a word mark.

Diary number. The reference generated when a copyright application is submitted. It is not a registration.

Examination report. The written statement of objections issued by the Registrar under Rule 33(2), to be answered within one month under Rule 33(4).

Form TM-A. The application for registration of a trademark.

Form TM-M. The miscellaneous form. It covers agent authorisation, extensions, division, expedited examination and other requests, at different fee entries.

Form TM-O. The notice of opposition and the counter-statement.

Form TM-R. Renewal, renewal with surcharge, and restoration and renewal.

Form TM-C. Request for search and issue of certificate under Rule 22(1) — the certificate also required for copyright registration of an artistic work used with goods or services.

Journal. The Trade Marks Journal, in which accepted applications are advertised. Publication opens the four-month opposition window.

Locarno Classification. The international classification for industrial designs, used for design registration in India.

Nice Classification. The international classification of goods and services, used for trademark registration in India.

Passing off. The common-law action protecting goodwill in a mark used in trade, registered or not, preserved by Section 27(2).

Proposed to be used. The basis of an application filed before the mark is in use, permitted by Section 18.

Relative grounds. The Section 11 grounds on which a mark is refused because of an earlier mark or earlier right.

Specification. The plain-language list of goods or services claimed within a class.

Udyam. The Government of India's free MSME registration, which establishes the small-enterprise status that halves trademark, design and patent fees.

Vienna code. The classification of figurative elements of marks, used to search logos in the register.

Word mark. A mark filed as text, protecting the word in any typeface, colour or style.

Sources

Every fee, form, deadline and statutory reference in this playbook was checked against primary sources in October 2026. The principal ones:

- Intellectual Property India, Trade Marks forms and official fees — the First Schedule to the Trade Marks Rules, 2017.
- Intellectual Property India, Trade Marks Rules, 2017 — Rules 19, 33, 34, 42, 43, 44, 45, 46, 47, 50, 109.
- The Trade Marks Act, 1999 — Sections 2, 9, 11, 12, 14, 18, 20, 25, 27, 29, 47, 103, 104, 107, 134, 135, 142.
- Intellectual Property India, Forms and Official Fees — Copyright; and the Second Schedule to the Copyright Rules, 2013.
- The Copyright Act, 1957 — Sections 2, 19, 22, 45, 51, 57, 63, 63A, 63B; Form XIV and the Copyright Office filing instructions.
- The Designs Act, 2000 and the Designs Rules, 2001, First Schedule as substituted by the Designs (Amendment) Rules, 2021.
- WIPO — Madrid System Schedule of Fees; Guide to the Madrid System; India's accession and declarations.
- Amazon Seller Central India — Brand Registry requirements and Transparency eligibility.
- Flipkart Brand Hub — Brand Assure enrolment prerequisites and reporting workflow.
- Ministry of MSME — Udyam Registration portal and the revised classification notification effective 1 April 2025.
- Jan Vishwas (Amendment of Provisions) Act, 2023 — amendments to the Trade Marks Act, in force from 1 August 2024.

Fees and procedural rules change by notification. Before filing, confirm the current fee and form on the official Intellectual Property Office website. Nothing in this playbook is legal advice, and nothing in it

creates a lawyer-client relationship. For a dispute, a high-value brand, an opposition or anything already in litigation, instruct an advocate.